Charter Amendment Measure F

IMPARTIAL ANALYSIS BY COUNTY COUNSEL
PROPOSED COUNTY CHARTER AMENDMENT TO ADDRESS UNEXPECTED VACANCIES OF AN ELECTED DEPARTMENT HEAD
MEASURE F

Measure F on the Ballot would amend the Charter of the County of Shasta to add a subsection to address unexpected mid-term vacancies of an elected department head. The amendment would require the Shasta County Board of Supervisors ("Board") to fill the vacancy of an elected department head position by calling for an election, and consolidating it with the next regularly scheduled election, so long as the election occurs within 12 months of the vacancy. Should the next regularly scheduled election not occur within 12 months of the vacancy, the amendment would require the Board to fill the vacancy, by a 4/5 vote, by appointment via open recruitment.

Under the proposed amendment, should the next regularly scheduled election not occur within 12 months of the vacancy, the Board shall fill the vacancy by appointment through open recruitment. The Board may direct staff to run an open recruitment and hold candidate interviews during an open session of the Board. The Board may extend the appointment to the candidate agreed upon by a 4/5 vote of the Board. If the conditional offer is accepted by the candidate, a background investigation and hiring process will need to be completed.

Appointees would serve the remainder of the term or until the next regularly scheduled election, whichever is sooner. Elected department head positions in the County are Assessor-Recorder; County Clerk/Registrar of Voters; Sheriff-Coroner; Auditor-Controller; District Attorney; and Treasurer-Tax Collector/Public Administrator.

Government Code section 25304 provides that the Board shall fill by appointment all vacancies that occur in any office filled by the appointment of the Board and elective county officers, except judge of the superior court and supervisors. This section further provides that the appointee shall hold office for the unexpired term or until the first Monday after January 1st succeeding the next general election. The California Supreme Court clarified that words "next general election" refer to the next general election for the office filled by appointment. (People v. Col. (1901) 132 Cal. 334.) For reference, the next general election for the elected positions of District Attorney and Sheriff/Coroner is June 6, 2028; and the next general election for the remainder of County elected department heads is November 3, 2026.

If approved by a majority of the qualified electors, Measure F would allow voters to vote sooner as to what individual serves as an elected department head position where there is an unexpected vacancy.

If the voters reject this measure, the Board will keep its current ability to fill by appointment all vacancies of elected county officers.

/s/ Renee Belcastro, Deputy County Counsel

The above statement is an impartial analysis of Ordinance or Measure F. If you desire a copy of the ordinance or measure, please call the elections official 's office at (530-225-5730) and a copy will be mailed at no cost to you.

You may also access the full text of the measure on the county website at the following web-site address:(https://elections.shastacounty .gov).